

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: July 16, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER DENYING WITHOUT PREJUDICE MOTION SUMMARY JUDGMENT

On July 15, 2025, Complainant filed a Motion for Summary Judgment. On July 16, 2025, Complainant filed a corrected Motion for Summary Judgment.

Under Commission Rule 70, a dispositive motion, including a motion for summary judgment, must include “a statement of material facts with exhibits as appropriate.” (46 C.F.R. § 502.70(a)). Similarly, the Initial Order states:

19. A party moving for summary decision must include in a separate document a statement of material facts as to which there is no genuine dispute. This document must set forth in separately numbered paragraphs a concise statement of each material fact as to which the movant contends there is no genuine dispute. Each paragraph must be limited as nearly as practicable to a single factual proposition. Each factual proposition must be followed by an exact citation to evidence that supports the fact; *i.e.*, a page number in the Appendix. (See 46 C.F.R. § 502.70(a)). The party filing Proposed Material Facts must provide an electronic copy in a word-processing format to all parties *and to the Office of Administrative Law Judges*.

(Initial Order, at 4-5, ¶ 19 (footnote omitted)).

Neither the original version of the Motion for Summary Judgment, nor the corrected version, contains a “statement of material facts” in a “separate document[.]” Because neither version of the Motion for Summary Judgment contains a statement of material facts in a separate document, the Motion for Summary Judgment is **DENIED** without prejudice.

The parties are reminded that discovery materials, such as initial disclosures, deposition transcripts, interrogatories, or requests for admissions, “must not be filed with the Commission until used in the proceeding, for example, as exhibits to a motion or brief.” (Initial Order, at 4, ¶ 12).

The parties are also reminded of their obligation to file a joint status report with proposed schedule within 15 days of the service of the answer. (Initial Order, at 1).

Richard C.
Ambrow Jr -S

Digitally signed by Richard
C. Ambrow Jr -S
Date: 2025.07.16 08:01:25
-07'00'

Richard Ambrow
Administrative Law Judge